

EXHIBIT D — HISTORICAL & CROSS-SEGMENT RISK CONTINUITY (UPDATED)

Evidence — Established Research

1. Stigma as Structured Social Process

- Link, B. G., & Phelan, J. C. (2001). *Conceptualizing Stigma*.
- Phelan, J. C., Link, B. G., & Dovidio, J. F. (2008). *Stigma and prejudice: One animal or two?*

Finding:

Stigma operates through labeling, stereotyping, status loss, and discrimination, producing measurable social and economic consequences.

2. Stigma in Sex Work Populations

- Benoit, C., et al. (2018). *Stigma and sex work: Understanding the social processes*.

Finding:

Sex work participation is consistently associated with stigma, social exclusion, reduced economic opportunity, and barriers to services.

3. Violence and Vulnerability

- Deering, K. N., et al. (2014). *A systematic review of the correlates of violence against sex workers*.

Finding:

Exposure to violence and vulnerability is widely documented and associated with structural conditions rather than isolated incidents.

4. Regulated Environments (Brothel Context)

- Brents, B., & Hausbeck, K. (2005). *Violence and legalized brothel prostitution in Nevada*.

Finding:

Regulation reduces but does not eliminate risk; stigma and vulnerability persist, requiring structured controls and boundary enforcement.

5. Stigmatized Labor (“Dirty Work”)

- Ashforth, B. E., & Kreiner, G. E. (1999). *“How can you do it?” Dirty work and the challenge of constructing a positive identity*.

Finding:

Stigmatized occupations require active identity management and psychological boundary-setting to cope with social devaluation.

6. Internal Stigma Reproduction (Within Occupation)

- Toubiana, M., & Ruebottom, T. (2022). *Stigma Hierarchies: The Internal Dynamics of Stigmatization in the Sex Work Occupation*.

Finding:

Stigma is not only externally imposed but is actively reproduced within the occupation itself. Participants construct internal hierarchies of status and legitimacy, ranking and differentiating one another in order to manage their own exposure to stigma.

These dynamics produce fragmentation rather than cohesion, limiting the availability of peer support and reinforcing status competition within the participation environment.

As a result, the occupation does not function as a stigma-buffering community; instead, stigma is circulated and reinforced internally, contributing to persistent instability, isolation, and vulnerability across participants.

7. Studio Pornography (Mediated / Recorded Environment)

- Weitzer, R. (2010). *The Mythology of Prostitution*.
- Paasonen, S., Nikunen, K., & Saarenmaa, L. (2007). *Pornification: Sex and Sexuality in Media Culture*.

Finding:

Participation in pornography is associated with stigma, reputational consequences, and challenges related to disclosure and identity.

8. Institutional Stigma in Knowledge Production (Sexuality Research)

- Irvine, J. M. (2014). *Is sexuality research 'dirty work'? Institutionalized stigma in the production of sexual knowledge*.

Finding:

Sexuality research is constructed as “dirty work” within the university system, producing systematic stigma through funding, publishing, and ethical review processes. These institutional practices generate persistent inequality and shape the production, limitation, and distribution of sexual knowledge.

9. Pre-Digital Evidence — Psychological and Physiological Response Continuity

Finding:

Pre-digital research on street prostitution, brothel systems, and early ethnographic studies consistently documents the emergence of detachment, dissociation, and emotional suppression as functional adaptations to repeated sexualized interactions under conditions of boundary negotiation and adversarial exchange.

Participants develop cognitive distancing strategies to maintain operational capacity, alongside routine exposure to boundary testing, coercive pressure, and interactional asymmetry.

Post-exit analyses identify persistent psychological effects, including trauma-related symptoms, identity disruption, and difficulty reintegrating into non-participation contexts.

These patterns are recorded across informal (street-based) and regulated (brothel) environments, indicating that such responses are not environment-specific but arise from the underlying conditions of participation.

The consistency of these documented responses prior to digital platforms supports classification of these outcomes as predictable adaptations rather than isolated or individual reactions.

Citations (Pre-Digital / Foundational Research)

Farley, M. et al. (2003) — *Prostitution in Five Countries*

Brents, B. & Hausbeck, K. (2005) — *Violence and Legalized Brothel Prostitution in Nevada*

Hoigard, C. & Finstad, L. (1992) — *Backstreets: Prostitution, Money and Love*

Phoenix, J. (1999) — *Making Sense of Prostitution*

O'Neill, M. (2001) — *Prostitution and Feminism: Towards a Politics of Feeling*

Structural Pattern (Cross-Time & Cross-Segment)

Across historical and contemporary contexts:

- Stigma produces status loss and reduced protection
- Reduced protection increases vulnerability to harm
- Exposure to harm is more likely under conditions of reduced protection
- Internal hierarchy formation fragments participants and limits collective support
- Resulting harm is frequently reframed as individual responsibility (“you chose it”)
- This reframing reinforces stigma and normalizes the cycle

While entry conditions and social framing vary across eras, public-facing signals at entry emphasize reward, visibility, and selective success, while outcome-related costs—including stigma, reputational persistence, and post-exit instability—are less visible or delayed.

This asymmetry in signal timing and visibility produces a divergence between initial social interpretation and observed participant outcomes without altering the underlying participation conditions.

Integrated Finding

Across street-level, regulated, and studio-based environments, materially similar outcomes—including stigma, reputational harm, and exposure to violence and vulnerability—are repeatedly documented.

While the form and visibility of risk may vary across conditions, the presence and interaction of these risks does not.

The persistence of these outcomes across time and environment demonstrates that they are historically known, structurally consistent, and foreseeable.

Relevance to Liability Framework

- These risks are documented in existing literature
 - These risks are observable across multiple environments and time periods
 - These risks are not disclosed at the point of entry (Exhibit A)
 - These risks are not addressed through institutional response (Exhibit B)
 - These risks are confirmed through participant outcome collision (Exhibit C)
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Preliminary Conclusion

Where:

- Risk is historically documented
- Risk is structurally consistent across environments
- Risk is foreseeable

and

- Disclosure is absent

→ Participants are exposed to known risks without informed understanding at the point of entry

Status

This exhibit is supported by established academic literature and reflects historically consistent, cross-segment patterns of stigma, vulnerability, and internal fragmentation.